

DEFAMATION AND FREEDOM OF EXPRESSION IN NIGERIA: EXAMINING THE LIMITS OF PROTECTED SPEECH



Introduction

Freedom of expression is one of the fundamental rights guaranteed under the Constitution of the Federal Republic of Nigeria 1999 (as amended). Section 39 of the Constitution grants every person the right to hold opinions and to receive and impart ideas and information without interference.

However, like many constitutional rights, freedom of expression is not absolute. The exercise of that right must be balanced against other legally protected interests, including the right of individuals and businesses to protect their reputation.

This balance becomes particularly relevant in an era where opinions, reviews, and commentary can be disseminated instantly through social media and other digital platforms. The question therefore arises: at what point does protected speech become actionable defamation?

What is Defamation?

Defamation generally refers to the publication of a false statement that tends to injure the reputation of another person.

Black's Law Dictionary defines defamation as a false statement concerning another that harms that person's reputation.

Similarly, Section 373 of the Criminal Code Act provides that a matter is defamatory if it is likely to expose a person to hatred, ridicule, or contempt, or is likely to injure the person in his office, profession, calling, trade, or business.

The law of defamation therefore seeks to strike a balance between the right to freedom of expression and the protection of reputation.

Elements of Defamation

For a claim in defamation to succeed, the claimant must generally establish the following elements:

A. The Statement Must Be Defamatory

The statement must be capable of lowering the claimant in the estimation of right-thinking members of society or exposing the claimant to ridicule, contempt, or disrepute.

B. The Statement Must Refer to the Claimant

The claimant must demonstrate that the words complained of were understood, or were reasonably capable of being understood, as referring to them.

This requirement may become particularly contentious where a person or company is not expressly named but alleges that the publication nonetheless points to them.

C. The Statement Must Be Published

Publication occurs when the statement is communicated to at least one person other than the claimant.

In the context of social media, publication may occur through posts, comments, reposts, videos, or other forms of online communication.

D. The Statement Must Be False damaging statements are entitled to seek legal remedies where appropriate.

The law does not favour unrestricted attacks on reputation, nor does it permit the suppression of legitimate criticism. Instead, it seeks to maintain an appropriate balance between these competing interests.

Illustrative Scenario: Defamation and Consumer Commentary

Consider a hypothetical situation in which a content creator shares a video expressing concern about a loaf of bread that appears not to have deteriorated after an unusually long period. The creator does not identify any manufacturer or brand in the video. However, viewers in the comment section begin suggesting the name of a particular company, and the creator subsequently engages with some of those comments.

If the company were to commence a defamation action, several legal issues would arise.

The first issue would be identification. A fundamental requirement in a defamation claim is that the allegedly defamatory statement must refer to the claimant. Where no company is expressly mentioned, the claimant would need to establish that a reasonable viewer would nonetheless understand the publication to refer to that company.

The involvement of third parties in the comment section may further complicate the analysis. In such circumstances, a court may be required to consider whether the creator's engagement with those comments amounted to an endorsement or adoption of the statements made by others. Even then, it would still be necessary to establish that the publication, viewed as a whole, led reasonable persons to identify the claimant.

A second issue would be the question of falsity. In this hypothetical scenario, the creator merely makes an observation and raises a concern regarding the product. The creator does not claim to possess expert knowledge regarding the product's composition, nor does she make a definitive allegation that harmful substances were used in its production.

The allocation of the burden of proof would therefore become significant. As recognised in *Abalaka v. Akinsete*¹, the claimant bears the burden of proving the elements necessary to establish defamation.

A third issue would be whether the publication constitutes a statement of fact or an expression of opinion. The law generally distinguishes between definitive factual assertions and comments, observations, or opinions based on disclosed facts. This distinction may become particularly important where the publication concerns matters of legitimate public interest, such as consumer welfare or food safety.

Ultimately, the outcome would depend on the specific facts, the precise words used, the surrounding circumstances, and the overall impression conveyed to an ordinary viewer.

The scenario also illustrates the continuing importance of freedom of expression. Individuals are generally entitled to express opinions, raise concerns, and participate in public discourse. At the same time, businesses remain entitled to seek legal protection where false and damaging statements unlawfully harm their reputation. The law seeks to maintain an appropriate balance between these competing interests.

Conclusion

¹ (2023) 13 NWLR (Pt. 1901) 343 SC

Defamation is not established merely because a statement causes discomfort, criticism, or reputational concern. It is a legal cause of action that requires the satisfaction of specific elements, including identification, publication, and defamatory meaning.

As public discourse increasingly shifts to digital platforms, the intersection between freedom of expression and defamation will continue to generate complex legal questions. Both individuals and businesses should therefore approach public communications with an appreciation of the legal principles that govern the limits of protected speech.

Ultimately, the law seeks to preserve two important values simultaneously: the constitutional right to freedom of expression and the legitimate interest in protecting reputation from unjustified harm.

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